

26SMCV02683 26SMCV02683

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-01

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TENTATIVE RULING

September 1, 2026

26SMCV02683 (1324 Stradella LLC v.
Antokhov)

RELEVANT BACKGROUND

On May 13, 2026,
plaintiff 1324 STRADELLA LLC (Plaintiff) filed its unlawful detainer complaint
against defendant Evgey Antokhov (Defendant).

INSTANT MOTION

On August 27, 2026, Defendant filed the
instant motion to set aside the judgment and any default and to quash any writ
of possession/execution. Plaintiff filed an opposition, and Defendant filed a
reply.

DISCUSSION

“The court may, upon any terms as
may be just, relieve a party or the party’s legal representative from a
judgment, dismissal, order, or other proceeding taken against the party through
the party’s mistake, inadvertence, surprise, or excusable neglect. Application
for this relief shall be accompanied by a copy of the answer or other pleading
proposed to be filed therein, otherwise the application shall not be granted, and

shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473, subd. (b).)

“When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” (Code Civ. Proc., § 473.5.)

A proof of service containing a declaration from a registered process server invokes a rebuttable presumption of valid service. (See *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390; see also Evid. Code § 647.) The party seeking to defeat service of process must present sufficient evidence to show that the service did not take place as stated. (See *Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428; cf. *People v. Chavez* (1991) 231 Cal.App.3d 1471, 1483.)

Here, Defendant seeks relief under Code of Civil Procedure sections 473(b), 473.5, 473(d), 128(a)(8), and 86(b)(3). Defendant argues that he was not properly served with the summons and complaint, and that the Evidence Code section 647 presumption of validity is rebutted by evidence.

Specifically, Defendant points to his declaration. (Antokhov Decl. ¶ 2-9.) He declares that the May 17 person did not identify himself, did not say the document was court papers, and handed over only a document of several pages, not the approximately 33-page package described in the return. (Id. ¶ 9.) He further testified that no mailed summons arrived. (Id., ¶ 9, 13a.) Additionally, Defendant argues that Plaintiff’s own service materials describe a recipient that does not match Defendant or any other adult male resident and the process server’s declaration overstates what the declarant’s own contemporaneous sheet shows. (Id.)

In opposition, Plaintiff argues that Defendant was properly served. Plaintiff argues that its registered process server, Arman Mardigian, made repeated attempts to personally serve Defendant

at the premises on May 15, May 16, and May 17, 2026. (Mardigian Decl., 3-6, Exh. 1). Plaintiff states that substituted service was complete on May 27, 2026, the tenth day after mailing. (Code Civ. Proc., 415.20(b))

In reply, Defendant maintains that he was not properly served. Defendant admits an encounter at the property on May 17, 2026, and receipt of a short, multipage document. He does not admit receiving the 33-page summons and complaint package described in the return, being told that the papers were court process, or receiving the required mailed copy. Defendant did not acquire genuine knowledge of this action until July 20, 2026 and filed his motion three days later.

The Court finds that Defendant has presented sufficient evidence to show that the service did not take place as stated and rebut the presumption of valid service. (Antokhov Decl. ¶ 2-9; Mardigian Decl., 3-6, Ex. 1). Defendant declares that the process server did not identify himself, did not say the document was court papers, and handed over only a document of several pages, not the approximately 33-page package described in the return. (Id. ¶ 9.) He further testified that no mailed summons arrived. (Antokhov Decl. ¶ 9, 13a.) Additionally, Defendant argues that Plaintiff's own service materials describe a recipient that does not match Defendant or any other adult male resident and the process server's declaration overstates what the declarant's own contemporaneous sheet shows. (Id.; Mardigian Decl., 3-6, Ex. 1.) The Court finds this to be adequate to rebut the presumption of valid service.

Accordingly, Defendant's motion to set aside the judgment and any default and to quash any writ of possession/execution) is GRANTED.

Defendant may have thirty (30) days in which to respond to the complaint.